CONTRACT TEMPLATE · CAPITAL MARKETS

Firm Underwriting and Standby Underwriting Agreement

Reference **PC-CTR-002** · Version **0.9** DRAFT

Owner	Head of Capital Markets
Next review	12 months after adoption
Confidentiality	Internal

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Document control sheet

Courtesy translation — the French version prevails.

Reference	PC-CTR-002	**Version**	0.9 — Draft
Title	Firm Underwriting and Standby Underwriting Agreement		
Type · domain	Contract template · Capital markets	**Confidentiality**	Internal
Owner	Head of Capital Markets		
Distribution	Executive Management, Capital Markets Department, RCCI		
Effective date	On adoption	**Next review**	12 months after adoption

APPROVAL WORKFLOW

Step	Function	Electronic sign-off	Handwritten signature
Drafting	Head of Capital Markets		
Review	Head of Compliance and Internal Control (RCCI)		Date and signature
Approval	Chief Executive Officer		Date and signature

REVISION HISTORY

Version	Date	Purpose	By
0.9	20 October 2026	Initial draft template, aligned with mandate agreement PC-CTR-001; each item of data is entered only once in the repository form	Head of Capital Markets

REFERENCE TEXTS

Regulation No. 01/22/CEMAC/UMAC/CM/COSUMAF of 21 July 2022 Official page · cosumaf.org	Public offering, authorised intermediaries, placement guarantee
COSUMAF General Regulation of 23 May 2023 Official text · cosumaf.org	Identity of the guarantors in the information memorandum (Art. 131); prudential standards for brokerage firms (Art. 11); ongoing disclosure
BVMAC General Regulation (in force since April 2025) Official page · bvm-ac.org	Admission to listing, centralisation, publication of results
General Regulation of the Single Central Securities Depository Overview · droitmediasfinance.com	Book-entry registration, settlement
OHADA Uniform Act on Commercial Companies and Economic Interest Groups (AUSCGIE) Official page · ohada.org	Corporate authorisations for the issue, rights of shareholders and bondholders
OHADA Uniform Act on Arbitration Official page · ohada.org	Arbitration, Common Court of Justice and Arbitration
IOSCO — Objectives and Principles of Securities Regulation Official text · iosco.org	International good practice: management of intermediaries' risks and conflicts of interest in placement transactions

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BETWEEN THE UNDERSIGNED:

[Issuer's corporate name], [Legal form (please specify)] [Legal form] with share capital of [Share capital], registered with the Trade and Personal Property Credit Register (RCCM) of [City of RCCM registration] under number [Issuer's RCCM number], whose registered office is at [Registered office address] ([Country of registered office]), represented by [Name of the Issuer's representative], acting in the capacity of [Capacity of the representative], duly authorised for the purposes hereof,

hereinafter "the Issuer",

AND

Purpose Capital S.A., a public limited company (société anonyme) with a board of directors, with share capital of three hundred and seventeen million five hundred thousand CFA francs (FCFA 317,500,000), a brokerage firm (société de bourse) licensed by COSUMAF under number COSUMAF-SDB-01/2026, registered with the Trade and Personal Property Credit Register (RCCM) of Yaoundé under number [RCCM number of Purpose Capital S.A.], whose registered office is at Rue Joseph Essono Balla, Elig-Essono, Yaoundé (Cameroon), represented by its Chief Executive Officer, duly authorised for the purposes hereof,

hereinafter "the Underwriter" or "Purpose Capital",

hereinafter referred to together as the "Parties" and individually as a "Party".

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Preamble

Whereas, under an arrangement and placement mandate agreement dated [Date of the arrangement and placement mandate agreement] (the "Mandate Agreement"), the Issuer entrusted Purpose Capital with arranging and placing an issue of [Description of the securities] [Type of Securities] in an amount of [Transaction Amount] (the "Transaction");

Whereas the Mandate Agreement contains only a best-efforts obligation and reserves any firm underwriting or standby underwriting commitment to a separate agreement;

Whereas the Issuer wishes to ensure that all or part of the Transaction will be subscribed, and Purpose Capital agrees to give this commitment from its own funds, within the limits and on the terms set out below,

IT IS HEREBY AGREED AS FOLLOWS:

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Title I — Purpose and definitions

Article 1 — Definitions

Terms defined in the Mandate Agreement have the same meaning in this agreement. In addition:

- **Underwritten Amount**: [Underwritten Amount], i.e. [Number of Securities underwritten] Securities at the Subscription Price;
- **Subscription Price**: [Unit Subscription Price of the Securities] per Security, equal to the issue price set in the Information Memorandum;
- **Closing**: the close of the Subscription Period, scheduled for [Close of the Subscription Period];
- **Unsubscribed Balance**: the difference, if positive, between the Transaction Amount and the amount of subscriptions validly received and paid up at Closing, excluding subscriptions made by the Underwriter under this agreement;
- **Settlement Date**: [Settlement Date], or any other date set in the Information Memorandum;
- **Long-Stop Date**: [Long-Stop Date for fulfilment of the conditions precedent], the date by which all conditions precedent must be fulfilled;
- **Market Event**: any of the events listed in Article 15.

Article 2 — Purpose

Under this agreement, the Underwriter gives the Issuer a **[Nature of the commitment]** commitment covering the Underwritten Amount, on the terms set out in Title II.

Article 3 — Relationship with the Mandate Agreement

The Mandate Agreement remains in force. This agreement supplements it, without amending it, solely as regards the subscription of the Securities by the Underwriter. In the event of any conflict on that matter, this agreement prevails.

The termination of the Mandate Agreement, for whatever reason, automatically terminates this agreement, unless the Securities have already been settled.

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Title II — Commitment of the Underwriter

Article 4 — Nature of the commitment

VARIANTE — NATURE OF THE COMMITMENT : STANDBY UNDERWRITING COMMITMENT

The Underwriter undertakes to subscribe, at the Subscription Price, for the Securities corresponding to the Unsubscribed Balance, up to the Underwritten Amount. It subscribes for nothing if the subscriptions received at Closing reach the Transaction Amount.

The placement with investors continues on the terms of the Mandate Agreement; the Underwriter steps in only at Closing, for the balance.

VARIANTE — NATURE OF THE COMMITMENT : FIRM UNDERWRITING

The Underwriter undertakes to subscribe, at the Subscription Price, for all the Securities corresponding to the Underwritten Amount, on the Settlement Date, irrespective of the outcome of the placement with investors.

It may then sell these Securities to investors, during or after the Subscription Period, on the terms of Article 8. The risk of not reselling them, or of reselling them at a lower price, is borne by the Underwriter.

The Underwriter's commitment is irrevocable, subject to the conditions precedent in Title III and the termination events in Title VI.

Article 5 — Amount and portion of the Transaction underwritten

The Underwritten Amount represents [Portion of the Transaction underwritten] of the Transaction Amount. The Underwriter's commitment may under no circumstances exceed this amount, plus, where applicable, any accrued interest owed by it in the event of late payment.

VARIANTE — UNDERWRITING SYNDICATE : UNDERWRITING SYNDICATE

The Underwritten Amount is assumed by an underwriting syndicate. Purpose Capital's share is [Share of the Underwritten Amount assumed by Purpose Capital], representing a maximum commitment of [Maximum commitment of Purpose Capital]. The other members of the syndicate and their shares are: [Other members of the underwriting syndicate and their shares].

The commitments of the members of the syndicate are **several and not joint**: each member is liable only for its own share. Purpose Capital coordinates the syndicate; a syndicate agreement (PC-CTR-003) governs the relationship between its members. The default of one member does not increase the share of the others, unless they agree otherwise in writing.

Article 6 — Calling and settlement of the commitment

VARIANTE — NATURE OF THE COMMITMENT : STANDBY UNDERWRITING COMMITMENT

1. No later than the business day following Closing, the Underwriter prepares, on the basis of the centralisation statement, the calculation of the Unsubscribed Balance using the template in Appendix “Underwriting calculation”, and notifies it to the Issuer.
2. The Underwriter subscribes for the corresponding Securities and pays their price into the centralisation account within [Payment period for the underwritten balance after closing (business days)] business days following Closing and, at the latest, on the Settlement Date.

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3. The Securities subscribed for by the Underwriter are delivered to it on the Settlement Date, at the same time as those of the other subscribers.

The Underwriter's subscriptions are never allocated before those of investors. In the event of oversubscription, the Underwriter does not subscribe for any Securities under this agreement.

VARIANTE — NATURE OF THE COMMITMENT : FIRM UNDERWRITING

1. On the Settlement Date, the Underwriter pays the price of the Securities corresponding to the Underwritten Amount into the centralisation account, and the Securities are delivered to it.
2. Subscriptions received from investors for these Securities are met by transfer from the Underwriter, at the Subscription Price, on the same date or on a later date.
3. The Underwriter prepares the calculation in Appendix “Underwriting calculation” and delivers it to the Issuer within five business days following the Settlement Date.

Article 7 — Own funds of the Underwriter

At the date of signature, Purpose Capital's maximum commitment represents [Purpose Capital's commitment as % of its own funds] of its own funds as at [Date of that statement]. Purpose Capital declares that it has obtained the internal authorisations required by its Risk Management Policy; approval of the Board of Directors: [Date of the Board of Directors' approval].

Purpose Capital maintains, until the Settlement Date, sufficient available resources to honour its commitment.

Article 8 — Securities held by the Underwriter

The Securities subscribed for by the Underwriter are credited to its proprietary account, separate from its clients' accounts. The Underwriter may retain them or sell them freely, in compliance with market rules and its Conflicts of Interest Management Policy:

- its clients' orders are always executed before any sale or purchase for its own account;
- it does not use any inside information relating to the Issuer;
- it informs the Issuer, at the Issuer's request, of the number of Securities it holds.

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Title III — Conditions precedent

Article 9 — Conditions

The Underwriter's commitment is subject to the following conditions, detailed in Appendix “Conditions precedent”, being fulfilled no later than the Long-Stop Date and continuing to be met until the Settlement Date:

1. COSUMAF approval (visa) of the Information Memorandum having been obtained, without any material change to the terms of the Transaction not accepted by the Underwriter;
2. the Issuer's corporate resolutions authorising the issue having been adopted;
3. delivery of the closing documents listed in Appendix “Conditions precedent”, in particular the legal opinion on the validity of the issue and the statutory auditors' certificates;
4. the accuracy of the Issuer's representations and warranties, as confirmed by the certificate in Appendix “Issuer's certificate”;
5. the absence of any Material Adverse Event within the meaning of the Mandate Agreement;
6. payment of the sums due under the Mandate Agreement.

The Underwriter may waive in writing all or any of these conditions, with the exception of the first.

Article 10 — Non-fulfilment

If any condition has not been fulfilled by the Long-Stop Date, and unless waived by the Underwriter, this agreement automatically lapses, without compensation on either side. Where the unfulfilled condition is within the Issuer's control, half of the underwriting commission remains due, as provided for in Article 14.

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Title IV — Undertakings of the Issuer

Article 11 — Representations and warranties

The Issuer repeats for the benefit of the Underwriter the representations and warranties given in the Mandate Agreement. It further represents, on signature, at Closing and on the Settlement Date:

1. that the Information Memorandum is accurate and complete and contains no omission likely to mislead investors;
2. that no material new fact has arisen since the approval (visa) without being the subject of a supplementary note;
3. that the issue and this agreement do not breach any commitment, articles of association or decision by which it is bound;
4. that the Securities, once issued, will be validly issued, fully paid up and freely transferable.

It delivers the certificate in Appendix “Issuer's certificate” on the Settlement Date.

Article 12 — Undertakings

The Issuer undertakes:

- to inform the Underwriter immediately of any fact likely to render a representation inaccurate or to constitute a Material Adverse Event;
- not to issue, without the written consent of the Underwriter, any securities of the same type for [Issuer's undertaking not to issue similar securities (months after settlement)] months following the Settlement Date;
- to apply the funds raised to the use announced in the Information Memorandum;
- to fulfil its disclosure obligations towards COSUMAF, the BVMAC and the holders of the Securities.

Article 13 — Indemnification

The Issuer indemnifies the Underwriter, its senior managers and its Staff Members against any loss, claim, defence costs or sanction resulting from:

- any inaccuracy or omission in the Information Memorandum or in the information provided by the Issuer;
- any breach by the Issuer of its representations, warranties or undertakings.

This indemnity is not due in the event of gross negligence or wilful misconduct on the part of the Underwriter, or in respect of information provided by the Underwriter itself. It survives the termination of the agreement for five years.

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Title V — Remuneration

Article 14 — Underwriting commission

In consideration for its commitment, the Underwriter receives an **underwriting commission** of [Underwriting commission (% of the Underwritten Amount)] of the Underwritten Amount, i.e. [Underwriting commission] exclusive of taxes, shared among the members of the syndicate in proportion to their shares.

The commission remunerates the commitment given, whether or not it is called. It is payable on the Settlement Date. If the Transaction is abandoned by the Issuer after the approval (visa), or if the agreement is terminated for a breach by the Issuer, half of the commission remains due.

The commission is invoiced separately from the commissions under the Mandate Agreement. It may not be set off against the price of the Securities subscribed for by the Underwriter.

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Title VI — Termination

Article 15 — Underwriter's right of termination

The Underwriter may terminate this agreement by written notice, at any time before payment of the price of the Securities for which it subscribes, upon the occurrence of any of the following events:

1. a general suspension of trading on the BVMAC, or an interruption of settlement by the Central Securities Depository, for more than one trading day;
2. a major political, economic, financial or security event, in the CEMAC or in the Issuer's country, which, in the reasonable opinion of the Underwriter, makes the completion of the Transaction impossible or seriously jeopardises it;
3. a Material Adverse Event affecting the Issuer;
4. the inaccuracy of any representation or the breach of any undertaking by the Issuer;
5. a decision by an authority suspending or withdrawing the approval (visa).

Before terminating, the Underwriter consults the Issuer, if time permits, with a view to postponing the Transaction.

Article 16 — Force majeure

Neither Party is liable for any failure to perform resulting from an event of force majeure. If the impediment lasts more than [Duration of force majeure giving rise to a right of termination (days)] days, either Party may terminate the agreement without compensation.

Article 17 — Effects of termination

Termination releases the Underwriter from its subscription commitment. It does not affect the Securities already settled, the indemnity under Article 13 or the commission due under Article 14. It does not affect the Mandate Agreement, unless the Parties decide otherwise.

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Title VII — Final provisions

Article 18 — Confidentiality, conflicts of interest and due diligence

Articles 14 to 16 of the Mandate Agreement (confidentiality and inside information, conflicts of interest, anti-money laundering and counter-terrorist financing) apply to this agreement.

Article 19 — Governing law

The agreement is governed by CEMAC Community law, the OHADA Uniform Acts and, for all other matters, [National law applicable on a subsidiary basis] law.

Article 20 — Dispute resolution

The Parties first seek an amicable settlement for [Duration of the amicable settlement phase (days)] days. They may have recourse to mediation by COSUMAF.

> VARIANTE — DISPUTE RESOLUTION : CCJA ARBITRATION
>
> Failing agreement, the dispute is settled by arbitration under the auspices of the OHADA Common Court of Justice and Arbitration (CCJA), by [Composition of the arbitral tribunal], seated in [Seat of arbitration], in the French language.

> VARIANTE — DISPUTE RESOLUTION : STATE COURTS
>
> Failing agreement, the dispute is submitted to the competent courts of [Competent courts of].

Article 21 — Miscellaneous

Notices are given in writing, by letter delivered against receipt, by registered letter with acknowledgement of receipt or by confirmed email. The agreement and its appendices constitute the entire agreement of the Parties on its subject matter; it may be amended only by a written amendment signed by both Parties, and may not be assigned without the written consent of the other Party. The invalidity of any clause does not affect the other clauses. The appendices form an integral part of the agreement.

Done at [Place of signature], on [Date of signature], in [Number of original counterparts] original counterparts.

For the Issuer
[Name of the Issuer's representative], [Capacity of the representative]

For Purpose Capital S.A.
The Chief Executive Officer

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